

Kitab Shree v. State of U.P. — prepaid new-connection application to be considered under clauses 4.1, 4.3 and 4.4

High Court of Judicature at Allahabad · Division Bench · 17 December 2019 · WRIT-C No. 41739 of 2019 · WRIT - C No. 41739 of 2019 · **Writ disposed; licensee to consider the prepaid-connection application and pass a speaking order either way within four weeks.**

HEADNOTE

Clauses 4.1, 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 oblige the licensee to consider an application for a new pre-paid connection and, if there is no legal impediment, to grant it speedily within four weeks. Inaction — neither grant nor reasoned refusal — is unjustified. The writ was disposed of with a direction to consider the petitioner's application and pass a reasoned speaking order either way within four weeks of production of a certified copy.

FACTUAL SUMMARY

Kitab Shree applied to the distribution licensee for a new pre-paid electricity connection at House/Plot No. 940A, Hemant Bihar, Barra-2, Kanpur Nagar. She alleged that the application had not been acted upon. She invoked Article 226 seeking mandamus to respondent No. 3 to grant the pre-paid connection, pointing to Chapter IV of the U.P. Electricity Supply Code, 2005. Counsel for the licensee appeared. The Court examined clauses 4.1, 4.3 and 4.4 and disposed of the writ with a time-bound direction to decide the pending application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

new connection (pre-paid) — duty to consider and grant

HOLDING

Clauses 4.1, 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 cast an obligation on the licensee to consider an application for a new pre-paid electricity connection and, if there is no legal impediment, to ensure that the connection is granted speedily within four weeks. Inaction on the application is unjustified. Mandamus to connect was refused; the licensee was directed to consider the application and pass a reasoned speaking order either way within four weeks. ¶ 5-7

PRINCIPLE TAGS

clauses-4.1-4.3-4.4-licensee-obliged-to-consider-and-grant-new-connection-speedily-if-no-impediment The Court read clauses 4.1, 4.3 and 4.4 as requiring the Kanpur licensee to consider Kitab Shree's pending pre-paid connection application and, absent legal impediment, to grant it within four weeks, and directed a speaking order either way rather than a mandamus to connect. ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY LEGAL IMPEDIMENT BARRED THE PRE-PAID CONNECTION, AND WHETHER THE CONNECTION WAS TO BE GRANTED ON MERITS

Left to the licensee to decide either way by a reasoned speaking order. ¶ 7